

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.,
COMPLAINANT**

v.

**THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP. SUPPLEMENT TO
MOTION TO COMPEL DISCOVERY FILED NOVEMBER 14, 2017**

MOTION MADE BY:

Donald F. Burke, Esq.
Law Office of Donald F. Burke

Paul Donovan, Esq.
LaRoe Winn Moerman & Donovan
Attorneys for Complainant Port

RETURN DATE:

As set by the Presiding Officer.

RELIEF SOUGHT:

(i) an order pursuant to 46 C.F.R. §502.150 compelling Respondent Port Authority of New York and New Jersey, to provide more specific answers to interrogatories, produce documents and provide a privilege log.

GROUND FOR RELIEF:

46 C.F.R. §502.150.

SUPPORTING PAPERS:

Memorandum of Law and Certification of Counsel previously submitted as well as Letter dated November 20, 2017 submitted herewith.

LAW OFFICE OF DONALD F. BURKE
Attorneys for Complainant
Port Elizabeth Terminal & Warehouse Corp.

By: s/Donald F. Burke
Donald F. Burke, Esq.

Dated: November 20, 2017

LAW OFFICE OF DONALD F. BURKE

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DONALD F. BURKE JR., ESQ.

Member of the Bars of New Jersey & New York

November 20, 2017

Via EMAIL to judges@fmc.gov and secretary@fmc.gov

Honorable Erin M. Wirth

Administrative Law Judge

Federal Maritime Commission

800 North Capital Street, N.W.

Washington, D.C. 20573-0001

Re: Port Elizabeth Terminal & Warehouse Corp. v. Port Authority of New York and New Jersey.

Federal Maritime Commission

Docket No.: 17-07

Dear Judge Wirth,

Kindly accept this letter supplementing the Complainant Port Elizabeth Terminal & Warehouse Corp.'s (PET&W's) Motion to Compel the Port Authority of New York and New Jersey (PANYNJ) to Provide More Specific Answers to Interrogatories, Produce Documents and Provide a Privilege Log in the above referenced matter.

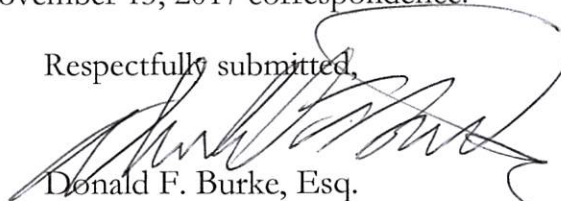
Under cover letter dated November 13, 2017, which was not received by me until after PET&W's motion was filed; PANYNJ provided the enclosed letter regarding its discovery responses along with a blank disc referencing PA 003099 to PA 005625. (See Letter from Juan Barragan to Donald F. Burke dated November 13, 2017 Exhibit A). As can be seen, PANYNJ has for the most part has maintained its position regarding discovery requested by PET&W as being outside the scope of discovery and/or privileged. For instance, PANYNJ has rejected the PET&W's attempt to obtain documents and information requested by PET&W. Specifically, the PANYNJ did not significantly change its response to 2, 3, 4 (changed by asserting an additional reference to Rules and Regulations Applying at

Port Authority Marine Terminals and Rates and Charges Applicable for the Use of Public Areas at Port Authority Marine Terminals (PA004344-PA004396)", 5, 6, 7 (changed by asserting references a privilege log not previously provided –see below regarding inadequacy of the privilege log provided), 8, 9, 10, 11, 12, 13, 14, (each generally referencing additionally documents bates No. PA003099-PA005625), 15, 16, 17, (no change in response), 18, 19, 20, 21, 22, 23, 27, 29, (no change in response other to generally reference PA004501-PA005625 not previously disclosed), 24, 25, 26, 28 - no change.

Of significance is the fact that the PANYNJ's privilege log raises the Deliberative Process Privilege as to approximately 179 documents without describing the communications over which secrecy is sought. Importantly, the PANYNJ has not established the communications were predecisional or deliberative, meaning they are connected to the policymaking process. Much more importantly, however, the deliberative process privilege is inapplicable where, as here, the decision-making process itself is the subject of the litigation. The reasons why PANYNJ preferred other Marine Terminal operators (including PNCT) and discriminated against PET&W is the focus of this litigation and the deliberative process privilege is inapplicable. The privileges raised regarding attorney Work Product and Attorney Client Privilege are in large measure not adequately supported. For instance, these privileges are raised when the authors and recipients are not attorneys as to a substantial number of documents. Certain entries appear to raise the privilege as to communications when non-PANYNJ persons are involved which waives any such privilege even if it was applicable in the first place. Regarding other communications, an attorney may be copied on the communication but this does not automatically render the communication privileged.

Finally, the PANYNJ has not addressed deficiencies in its Answers to PET&W's Interrogatories. Accordingly, the issues raised in PET&W's Motion to Compel are essentially unresolved by the PANYNJ's November 13, 2017 correspondence.

Respectfully submitted,



Donald F. Burke, Esq.

cc: Juan Barragan, Esq., VIA EMAIL ONLY jbarragan@panynj.gov
David Kromm, Esq., VIA EMAIL ONLY dkromm@panynj.gov
Paul Donovan, Esq., VIA EMAIL ONLY paul.donovan@laroelaw.com

EXHIBIT A

THE PORT AUTHORITY OF NY & NJ

Law Department

4 World Trade Center
150 Greenwich Street
New York, NY 10007

November 13, 2017

Via FedEx Express

Donald F. Burke, Esq.
Law Office of Donald F. Burke
45 Gale Road
Brick, NJ 08723

Re: Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority
Docket No.: 17-07
Our Matter No.: 201711889

Dear Mr. Burke,

I am in receipt of your November 6, 2017 discovery deficiency letter. Enclosed are the Port Authority's responses to the deficiencies you indicate are present in the Port Authority's responses to PETW's first request for production of documents.

1. Request: 1. All documents requested and/or identified in plaintiffs Interrogatories and/or referenced in defendants' Answers to Interrogatories and/ or pleadings.
 - *Port Authority's response:* See the Treasury file (bates No. PA000001-000010), the Leases & Agreements file (bates No. PA000011-PA000409), the Law Department file (bates No. PA000410 PA000981), the PETW file (PA000982-PA001200), and the Ports file (bates No. PA001201- PA003098).
 - *PETW's claimed deficiency:* The documents requested and/or identified in plaintiffs Interrogatories and/or referenced in defendants' Answers to Interrogatories and/ or pleadings go well beyond what has been referenced in the above response. For instance, by way of example and not by way of limitation, all communications have not been provided and neither have litigation documents pertaining to other tenants. Please provide requested documents and records.
 - *Port Authority's response to PETW's claimed deficiency:* See the additional documents, which include: Additional Ports File & Docs. Relating to PNCT Lease (bates No.: PA003099-PA003639), Rules and Regulations Applying at Port Authority Marine Terminals and Rates and Charges Applicable for the Use of Public Areas at Port Authority Marine Terminals (PA004344-PA004396), documents relating to the RFP for the property located 1400 Aruba Street (PA004397-4426 PA001400), documents relating to the RFP for the properties located at Export Street (PA004427-PA004500), and documents relating to International Motor Freight, Export Transport, Hudson

Refrigeration, TRT, International Motor Freight, and Eastern Warehouses (PA004501-PA005625).

2. Request: 2. All documents utilized to prepare defendants' Answers to Interrogatories in this action.
 - *Port Authority's response:* The Port Authority objects to this request on the basis that the information sought may be protected from disclosure under the attorney-client privilege. The Port Authority also objects to this request on the ground that the information sought is not relevant to the subject matter of this action. The Port Authority further objects to this request to the extent that the request is vague, overly broad, and responding to same would be unduly burdensome, expensive and/or time consuming. Without waiving these objections, see the documents referenced in response #7, which may be responsive to this request.
 - *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks documents utilized to prepare defendants' Answers to Interrogatories and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. This boiler plate objection violates the rules and is sanctionable.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, all documents have been produced.
3. Request: 3. All documents that defendants contend refute any of the factual allegations of the Complaint and/ or support any affirmative defense or are relevant to this action.
 - *Port Authority's response:* See response to request #2.
 - *PETW's claimed deficiency:* See deficiency regarding request #2. As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks documents that defendant contends refute any of the factual allegations of the Complaint and/ or support any affirmative defense or are relevant to this action and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. This boiler plate objection violates the rules and is sanctionable.

- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, all documents have been produced.
4. Request: 4. Documents establishing or describing reasonable regulations and practices of the PANYNJ as they pertain to tenants who receive, handle, store, or deliver property in the Port of New York - New Jersey including tenants who are Marine Terminal Operators as that term is used in the Shipping Act including but not limited to the following: a. Eviction; b. Rent arrearages; c. Relocation of existing tenants; d. Removal of existing tenants; and e. Accommodation of tenants' business needs.
- *Port Authority's response:* See response to request #2.
 - *PETW's claimed deficiency:* See deficiency regarding request #2. As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks documents establishing or describing reasonable regulations and practices of the PANYNJ as they pertain to tenants who receive, handle, store, or deliver property in the Port of New York - New Jersey including tenants who are Marine Terminal Operators as that term is used in the Shipping Act and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The request goes directly to the claims asserted in the Verified Complaint. Further, PET&W contends it was treated differently than other Marine Terminal Operators particularly regarding a. Eviction; b. Rent arrearages; c. Relocation of existing tenants; d. Removal of existing tenants; and e. Accommodation of tenants' business needs. Accordingly, documents establishing or describing reasonable regulations and practices of the PANYNJ as they pertain to these areas are directly relevant.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, please see the Rules and Regulations Applying at Port Authority Marine Terminals and Rates and Charges Applicable for the Use of Public Areas at Port Authority Marine Terminals (PA004344-PA004396).
5. Request: 5. All lease agreements between the PANYNJ and PET&W.
- *Port Authority's response:* See the Leases & Agreements file, the Ports file and the PETW file.

- *PETW's claimed deficiency:* The Leases and Agreement file has the Lease entered into in 2011 with PNCT. There is a course of dealings between the parties PANYNJ and PET&W that is evident by a review of prior leases. The longstanding course of conduct is that the parties would accommodate one another's business needs and, specifically, that the PANYNJ would provide space adequate for PET&W to continue business operations at Port Newark. Accordingly, please provide all lease agreements between the PANYNJ and PET&W as requested.
 - *Port Authority's response to PETW's claimed deficiency:* In response to PETW's claimed deficiency, all relevant leases and agreements have been produced and are included in the Leases & Agreements file, the Ports file, and the PETW file.
6. Request: 6. All lease agreements between the PANYNJ and Port Newark Container Terminals ("PNCT").
- *Port Authority's response:* See the Leases & Agreements file.
 - *PETW's claimed deficiency:* None, provided the 2011 lease with PNCT is the only lease ever entered into between PNCT, its parents, subsidiaries and related companies and PANYNJ.
 - *Port Authority's response to PETW's claimed deficiency:* In response to PETW's claimed deficiency, all relevant leases and agreements have been produced and are included in the Leases & Agreements file, the Ports file, and the PETW file.
7. Request: 7. Communications, including electronic communications, between the PANYNJ and PNCT regarding properties leased from the PANYNJ by PET&W.
- *Port Authority's response:* The Port Authority objects to this request on the basis that the information sought may be protected from disclosure under the attorney-client privilege. The Port Authority also objects to this request on the ground that the information sought is not relevant to the subject matter of this action. The Port Authority further objects to this request to the extent that the request is vague, overly broad, and responding to same would be unduly burdensome, expensive and/or time consuming. Without waiving these objections, see the Ports file and the PETW file, which may contain documents that are responsive to this request.
 - *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks communications, including electronic communications, between the PANYNJ and

PNCT regarding properties leased from the PANYNJ by PET&W and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute. Please provide a full and complete response.

- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

8. Request: 8. Internal communications, including electronic communications, of the PANYNJ regarding properties leased from the PANYNJ by PET&W.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks internal communications, including electronic communications, of the PANYNJ regarding properties leased from the PANYNJ by PET&W and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

9. Request: 9. Communications, including electronic communications, between the PANYNJ and PNCT regarding properties leased from the PANYNJ by PNCT.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks

communications, including electronic communications, between the PANYNJ and PNCT regarding properties leased from the PANYNJ by PNCT and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute. Please provide a full and complete response.

- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

10. Request: 10. Internal communications, including electronic communications, of the PANYNJ regarding properties leased from the PANYNJ by PNCT.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks internal communications, including electronic communications, of the PANYNJ regarding properties leased from the PANYNJ by PNCT and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

11. Request: 11. Proposals submitted by PNCT to the PANYNJ for development of facilities within the Port of New York - New Jersey from 2000 to present.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the

withheld documents to assess the claim of privilege. Further, the request seeks proposals submitted by PNCT to the PANYNJ for development of facilities within the Port of New York - New Jersey from 2000 to present and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute. Please provide a full and complete response.

- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

12. Request: 12. Proposals submitted by PNCT to the PANYNJ for operation of facilities within the Port of New York - New Jersey from 2000 to present.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks proposals submitted by PNCT to the PANYNJ for operation of facilities within the Port of New York - New Jersey from 2000 to present and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

13. Request: 13. Internal communications, including electronic communications, of the PANYNJ regarding proposals submitted by PNCT for development and operation of facilities from 2000 to present.

- *Port Authority's response:* See response to request #7.

- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks internal communications, including electronic communications, of the PANYNJ regarding proposals submitted by PNCT for development and operation of facilities from 2000 to present and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

14. Request: 14. Internal communications, including electronic communications, of the PANYNJ regarding proposals submitted by PET&W for development and operation of facilities from 2000 to present.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks internal communications, including electronic communications, of the PANYNJ regarding proposals submitted by PET&W for development and operation of facilities from 2000 to present and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

15. Request: 15. Pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs. Orders, opinions, stipulations, board resolutions, settlement agreements, and other such documents and records

in any suit or action brought by or on behalf of the following from 2000 to present against the Port Authority of New York and New Jersey: a. Maher Terminals, its parent or subsidiary entities; b. American Stevedoring, its parent or subsidiary entities; c. American Warehousing, its parent or subsidiary entities; d. CARGO (North East Marine Terminal); e. Foreign Auto Preparation Services (FAPS), its parent or subsidiary entities; and f. Each Marine Terminal Operator or entity claiming to be a Marine Terminal Operator.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks Pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, board resolutions, settlement agreements, and other such documents and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Other than the privilege log, which is annexed hereto, no additional response needed.

16. Request: 16. Pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, board resolutions, settlement agreements and other such documents and records in any suit or action brought by or on behalf of the following by the Port Authority of New York and New Jersey from 2000 to present against: a. any Marine Terminal operator; b. any tenant seeking eviction; and c. any tenant seeking back rent.

- *Port Authority's response:* See response to request for production #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks Pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, board resolutions, settlement agreements and other such documents regarding litigation brought against others similarly situated as PET&W and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute especially in light of

the claim of disparate treatment by PET&W. Please provide a full and complete response.

- *Port Authority's response to PETW's claimed deficiency:* Other than the privilege log, which is annexed hereto, no additional response needed.

17. Request: 17. Records regarding tenants in arrears in rent payments from 2000 to present.

- *Port Authority's response:* See response to request for production #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks records regarding tenants in arrears in rent payments from 2000 to present and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute especially in light of the claim of disparate treatment by PET&W. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* As indicated in response to request for production#7, the information sought is not relevant to the subject matter of this action.

18. Request: 18. Records regarding tenants who the PANYNJ contends are in breach of lease from 2000 to present and actions taken by PANJNY, if any.

- *Port Authority's response:* See response to request for production #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks records regarding tenants who the PANYNJ contends are in breach of lease from 2000 to present and actions taken by PANJNY, if any and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute especially in light of the claim of disparate treatment by PET&W. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents relating to International Motor Freight,

Export Transport, Hudson Refrigeration, TRT, International Motor Freight, and Eastern Warehouses (PA004501-PA005625).

19. Request: 19. Communications, including electronic communications, between or among the PANYNJ, its agents, servants, and/or employees regarding PET&W and/or PNCT's agents, servants and employees from 2000 to present.

- Port Authority's response: See response to request #7.
- PETW's claimed deficiency: As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks communications, including electronic communications, between or among the PANYNJ, its agents, servants, and/or employees regarding PET&W and/or PNCT's agents, servants and employees from 2000 to present and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute especially in light of the claim of disparate treatment by PET&W. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

20. Request: 20. Communications, including electronic communications, between or among the PANYNJ, its agents, servants, and/or employees regarding PNCT and/or PNCT's agents, servants and employees from 2000 to present.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks communications, including electronic communications, between or among the PANYNJ, its agents, servants, and/or employees regarding PNCT and/or PNCT's agents, servants and employees from 2000 to present and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute especially in light of the claim of disparate treatment by PET&W. Please provide a full and complete response.

- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

21. Request: 21. Files, documents and communications, including electronic communications, regarding use of property and/or plans for use of property occupied by PET&W or which PET&W requested PANYNJ to allow it to occupy from 2000 to present.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks files, documents and communications, including electronic communications, regarding use of property and/or plans for use of property occupied by PET&W or which PET&W requested PANYNJ to allow it to occupy from 2000 to present and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The communications go directly to issues in dispute especially in light of the claim of disparate treatment by PET&W. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

22. Request: 22. Aerial photographs of Port Newark from 2000 to present.

- *Port Authority's response:* The Port Authority objects to this request on the ground that the information sought is not relevant to the subject matter of this action. The Port Authority further objects to this request to the extent that the request is vague, overly broad, and responding to same would be unduly burdensome, expensive and/or time consuming.

- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks aerial photographs of Port Newark from 2000 to present and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. The aerial photographs may lead to discoverable information. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

23. Request: 23. Presentations regarding the expansion of PNCT at Port Newark from 2000 to present prepared by the PANYNJ, PNCT or other entities.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks presentations regarding the expansion of PNCT at Port Newark from 2000 to present prepared by the PANYNJ, PNCT or other entities and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

24. Request: 24. Plans, studies, recommendations, presentations or the like regarding affording tenants of PANYNJ being impacted as a result of the expansion of PNCT's operations an opportunity to negotiate for space provided or to be provided to PNCT.

- *Port Authority's response:* See response to request #7.

- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks plans, studies, recommendations, presentations or the like regarding affording tenants of PANYNJ being impacted as a result of the expansion of PNCT's operations an opportunity to negotiate for space provided or to be provided to PNCT and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, any documents response to this request would be contained in the documents that have been propounded.

25. Request: 25. Files, documents and/or communications (including electronic communications) affording tenants of PANYNJ being impacted as a result of the expansion of PNCT's operations an opportunity to negotiate for space provided or to be provided to PNCT.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks files, documents and/or communications (including electronic communications) affording tenants of PANYNJ being impacted as a result of the expansion of PNCT's operations an opportunity to negotiate for space provided or to be provided to PNCT and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, any documents response to this request would be contained in the documents that have been propounded.

26. Request: 26. Plans, studies, recommendations, presentations or the like regarding accommodation of tenants of PANYNJ being impacted as a result of the expansion of PNCT's operations.

- *Port Authority's response:* See response to request #7.

- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks plans, studies, recommendations, presentations or the like regarding accommodation of tenants of PANYNJ being impacted as a result of the expansion of PNCT's operations and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, any documents responsive to this request would be contained in the documents that have been propounded.

27. Request: 27. Plans, studies, recommendations, presentations or the like regarding accommodation of PET&W.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks plans, studies, recommendations, presentations or the like regarding accommodation of PET&W and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. A copy of the privilege log is likewise annexed hereto.

28. Request: 28. Files, documents and/or communications (including electronic communications) advising PET&W that it would be permitted to negotiate for space provided or to be provided to PNCT.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the

withheld documents to assess the claim of privilege. Further, the request seeks Files, documents and/or communications (including electronic communications) advising PET&W that it would be permitted to negotiate for space provided or to be provided to PNCT and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. Please provide a full and complete response.

- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, any documents responsive to this request would be contained in the documents that have been propounded.

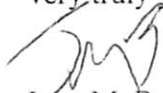
29. Request: 29. Documents, records and/or communications upon which PANYNJ may rely upon which it contends are pertinent on any issue presented in this manner.

- *Port Authority's response:* See response to request #7.
- *PETW's claimed deficiency:* As to the claim of attorney-client privilege, please provide a privilege log with enough detail to allow an objective analysis of the withheld documents to assess the claim of privilege. Further, the request seeks documents, records and/or communications upon which PANYNJ may rely upon which it contends are pertinent on any issue presented in this manner and is not vague or overly broad and responding would not be unduly burdensome, expensive and/or time consuming. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's responses to this request and in response to PETW's claimed deficiency, documents responsive to this request are contained in the Port Authority's responses to PETW's first request for production of documents. Additional documents are attached hereto and bates No. PA003099-PA005625. The Port Authority may also rely upon any documents produced by either party during the course of discovery. A copy of the privilege log is likewise annexed hereto.

THE PORT AUTHORITY OF NY & NJ

Should you have any questions, please do not hesitate to contact me.

Very truly yours,



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Enclosures

cc: Paul M. Donovan, Esq. (via FedEx Express w/ encls.)